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AS AMENDED

By: Hilbert of the House

Logan of the Senate

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1 1. The volunteer was acting in good faith and within the scope
2 of the volunteer's official functions and duties for a charitable
3 organization or not-for-profit corporation; and

4 2. The damage or injury was not caused by gross negligence or
5 willful and wanton misconduct by the volunteer.

6 B. In any civil action against a charitable organization or
7 not-for-profit corporation for damages based upon the conduct of a
8 volunteer, the doctrine of respondeat superior shall apply,
9 notwithstanding the immunity granted to the volunteer in subsection
10 A of this section.

11 C. 1. Any charitable organization, volunteer, or employee of a
12 charitable organization shall be immune from liability in a civil
13 action for any act to disclose sexually inappropriate conduct with a
14 minor by the charitable organization, volunteer, or employee of a
15 charitable organization resulting in breach of contract, damages, or
16 injury if the charitable organization, volunteer, or employee of a
17 charitable organization:

18 a. was acting in good faith in the disclosure of sexually
19 inappropriate conduct with a minor to another
20 charitable organization or not-for-profit,

21 b. the person who had sexually inappropriate conduct with
22 a minor was or is an employee or volunteer of the
23 disclosing charitable organization,
24

1 c. the disclosure was made in relation to the person's
2 current or prospective employment or volunteering with
3 the disclosed to charitable organization or not-for-
4 profit, and

5 d. reported the sexually inappropriate conduct with a
6 minor to a law enforcement agency or the Department of
7 Human Services within seventy-two (72) hours of
8 becoming aware of the sexually inappropriate conduct
9 with a minor.

10 2. A presumption of good faith shall arise if the disclosure
11 provided for in subparagraph a of paragraph 1 of this subsection was
12 made in compliance with a reporting policy adopted by the disclosing
13 charitable organization. The reporting policy shall include, but
14 not be limited to, defining actions or behaviors constituting
15 sexually inappropriate conduct with a minor.

16 3. The immunity provided for in this subsection shall not apply
17 to an individual disclosing his or her own conduct that constitutes
18 sexually inappropriate conduct with a minor.

19 D. Any person who, in good faith and without compensation, or
20 expectation of compensation, donates or loans emergency service
21 equipment to a volunteer shall not be liable for damages resulting
22 from the use of such equipment by the volunteer, except when the
23 donor of the equipment knew or should have known that the equipment

1 was dangerous or faulty in a way which could result in bodily
2 injury, death, or damage to property.

3 ~~D.~~ E. Definitions.

4 1. For the purposes of this section, the term "volunteer" means
5 a person who enters into a service or undertaking of the person's
6 free will without compensation or expectation of compensation in
7 money or other thing of value in order to provide a service, care,
8 assistance, advice, or other benefit; provided, being legally
9 entitled to receive compensation for the service or undertaking
10 performed shall not preclude a person from being considered a
11 volunteer.

12 2. For the purposes of this section, the term "charitable
13 organization" means any benevolent, philanthropic, patriotic,
14 eleemosynary, educational, social, civic, recreational, religious
15 group or association, or any other person performing or purporting
16 to perform acts beneficial to the public.

17 3. For the purposes of this section, the term "not-for-profit
18 corporation" means a corporation formed for a purpose not involving
19 pecuniary gain to its shareholders or members, paying no dividends
20 or other pecuniary remuneration, directly or indirectly, to its
21 shareholders or members as such, and having no capital stock.

22 4. For purposes of this section, the term "employee" means a
23 person who performs ministerial, supervisory, or staff services for
24 a charitable organization and is subject to the organization's

1 governance, direction, or authority in connection with those
2 services, regardless of tax classification. The term employee does
3 not include an independent contractor or third-party service
4 provider who retains control over the manner and means of performing
5 services.

6 ~~E.~~ F. The provisions of this section shall not affect the
7 liability that any person may have which arises from the operation
8 of a motor vehicle, watercraft, or aircraft in rendering the
9 service, care, assistance, advice, or other benefit as a volunteer.
10 Provided, however, the liability of any person with a current motor
11 vehicle insurance policy at the required minimum limits who
12 volunteers to provide transportation shall not exceed the limits of
13 such insurance policy, except for gross negligence or willful or
14 wanton conduct committed in providing such transportation. In no
15 event shall the limitation on liability provided under this
16 subsection apply to a person who does not possess a current motor
17 vehicle policy when providing transportation.

18 ~~F.~~ G. The immunity from civil liability provided for by
19 subsection A of this section shall extend only to the actions taken
20 by a person rendering the service, care, assistance, advice, or
21 other benefit as a volunteer, where such actions are agreed upon in
22 advance by all involved persons to be provided on a volunteer basis.
23 This section shall not be construed to confer any immunity to any
24 person for actions taken by the volunteer prior to or after the

1 rendering of the service, care, assistance, advice, or other benefit
2 as a volunteer.

3 G. H. This section shall apply to all civil actions filed after
4 ~~August 25, 1995~~ November 1, 2026.

5 SECTION 3. This act shall become effective November 1, 2026.

6 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
7 April 21, 2026 - DO PASS AS AMENDED
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